
Are Democrats Going to Vote for More Money for ICE?

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Early Saturday morning, it appeared as if enough Senate Democrats were willing to fund the Department of Homeland Security and its deportation machine, if that's what it took to keep the rest of the government open.

How quickly things change.

The House had passed funding for the DHS late last week, with seven centrist Democrats joining nearly all Republicans to get it over the line. The Senate was to take it up this week alongside a handful of other funding bills. It was expected that, as with the House vote, enough Democrats would hold their noses and support it, even if it meant absorbing blowback from a furious Democratic base that has been [dusting off](#) the largely dormant "Abolish ICE" slogan. Democratic negotiators felt that approving full-year, carefully negotiated spending bills and reasserting Congress' power of the purse over a freewheeling executive branch was the priority of the moment.

"There is much more we must do to rein in DHS, which I will continue to press for," Sen. Patty Murray, the top Democrat on the Senate Appropriations Committee, said in a [statement](#) last Tuesday, once the deal was released. She listed some pittances she had secured in the DHS bill, such as more money for body cameras for Immigrations and Customs Enforcement. She knew, though, that wouldn't ease any anger within the base. Ultimately, she leveled.

"But the hard truth," she added, "is that Democrats must win political power to enact the kind of accountability we need."

All of this changed on Saturday in Minneapolis, when Border Patrol agents [killed](#) 37-year-old observer Alex Pretti. All of this changed when videos showed Pretti subdued, being pepper-sprayed and then shot, over and over again, without brandishing the firearm that he was permitted to carry. All of this changed when, as after the killing of Renee Good, White House adviser [Stephen Miller](#) and DHS Secretary [Kristi Noem](#) absurdly described Pretti as a "domestic terrorist" or "[assassin](#)." After Pretti's killing and the administration's eyesight-defying remorselessness over what happened, there was no way Senate Democrats could put their fingerprints on a bill to fund the administration's deportation machine.

"I will NOT support the DHS bill as it stands," Patty Murray [said](#) Saturday.

She was hardly the only one. Democrats who've previously broken from the pack to join Republicans in advancing government funding bills, like Sens. Tim Kaine, Catherine Cortez Masto, Angus King, and Jacky Rosen, all said the same. On the House side, meanwhile, one Democrat who had voted for the DHS funding bill, New York Rep. Tom Suozzi, [offered](#) a mea culpa on social media, saying that he had "long been critical of ICE's unlawful behavior and I must do a better job demonstrating that."

Senate Democratic Leader Chuck Schumer put a bow on Democrats' new posture Saturday night: Democrats [would filibuster](#) DHS funding without changes. And it didn't sound like there was much handwringing about it.

Does this make a partial government shutdown, after funding lapses after Jan. 30, inevitable? Let's say much more *likely*. The situation is complicated for reasons including, but not limited to, the weather.

The funding bill the Senate will be voting on does not just cover DHS. It combines half a dozen bills that the House has passed in January funding everything from the Pentagon to the State Department to the departments of Health and Human Services, Transportation, Education, Labor, and more. Although this package includes only half of the 12 yearly appropriations bills, the specific departments it includes—especially Defense and HHS—comprise a comfortable majority of annual spending.

Senate Democrats are calling on their Republican counterparts, in Schumer's words, to "work with Democrats to advance the other five funding bills while we work to rewrite the DHS bill." In other words, to strip DHS funding from the package, pass everything else, and then allow for more time to negotiate the DHS budget.

Would Republicans be willing to do this? They typically don't take orders from Democrats. But Republican leaders, just as much as Democratic ones, don't want appropriators' delicate work on the biggest funding bills to get sent to an incinerator of fury. The New York Times [reported](#) Saturday that "recognizing the depth of Democratic rage," Senate Republicans "immediately began examining whether they could separate the homeland security funding from the rest of the package and preserve the bulk of what had been a bipartisan deal to fund a large chunk of the government." Maine Sen. Susan Collins, the chair of the Appropriations Committee, said her committee was "exploring all options."

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If—if—leaders in the Senate reach an agreement to amend the package, then there's another problem: The House is on recess this week, and House Republicans' leaders wouldn't be particularly enthused about summoning members to Washington to revote on a package amended at Democrats' request. Plus, a substantial portion of the continental United States is buried under a

sheet of ice and snow, conditions that aren't conducive to travel.

The forecast, then, shows an impasse.

It's important to note that a lapse in DHS funding wouldn't impede deportation operations much. As Patty Murray repeatedly said when she was trying to push the deal through, ICE is sitting on substantial funds that were [made available to it](#) in Republicans' party-line megabill last year.

Murray is still saying that, posting on Sunday that "Americans must be eyes wide open that blocking the DHS funding bill will not shut down ICE. ICE is now sitting on a massive slush fund it can tap, whether or not we pass a funding bill."

"But," [she added](#), "we all saw another American shot and killed in broad daylight." They're not about to bless it with their votes.

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